



File No: EXP202309901

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On September 18, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against SEAT, S.A. (hereinafter, the claimed party), through the Agreement that is transcribed:

<<

Procedure No: EXP202309901 (PS/00284/2024)

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out ex officio by the Spanish Agency for Data Protection before the entity SEAT, S.A., with CIF: A28049161, owner of the website www.seat.es, for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI), and considering the following:

FACTS

FIRST: On 13/09/24, several diligent checks were carried out on the website www.seat.es in which the following characteristics regarding its "Cookie Policy" were verified:

1.- On the use of cookies before the user gives their consent:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website, it was verified that the following cookies are used:

a).- Technical or necessary cookies:

cookies

Domain

Description

affinity

.seat.es

Used to distribute traffic on the website to different servers in order to optimize response times.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/12

cookies

Domain

Description

Optanon

Consent

.seat.es

Stores information about the categories of cookies used by the site and whether visitors have given or withdrawn consent for the use of each category.

adobeajs-

optin

.seat.es

Its function is to record the user's decisions regarding which services or cookies are allowed based on their consent.

b).- Functionality or Preference Cookies: These are the cookies that allow a website to remember the choices made by the user regarding their browsing experience. These cookies are not essential for the basic functioning of the site, but they are useful for providing a more tailored experience to the user's

preferences. These cookies store information such as the preferred language, the region from which the user accesses, or presentation settings of the website (e.g., text size or layout).

In general, functionality or preference cookies are not considered strictly necessary for the basic functioning of the website, which implies that, under the General Data Protection Regulation (GDPR), it is necessary to request the user's prior consent for their installation, as they affect the personal experience, even though they are not invasive in terms of data collection.

cookies

Domain

Description

VISITOR_

PRIVACY_

METADATA

.youtube.com

This cookie is designed to store data about the privacy choices that users make regarding YouTube content and services.

c).- Targeting Cookies: (advertising cookies or targeting cookies) are those designed to collect information about the user's browsing habits with the aim of showing them personalized and relevant ads. These cookies allow companies to create detailed profiles of users based on their preferences and online behaviors, helping to target their advertising campaigns.

cookies

Domain

Description

VISITOR_IN

.youtube.com

YouTube sets this cookie to

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/12

cookies

Domain

Description

FO1_LIVE

track user preferences for embedded YouTube videos on sites.

YSC

.youtube.com

YouTube sets this cookie to track user interactions with embedded YouTube videos on a webpage.

This includes information about video views and actions taken by the user while playing the content (such as pauses, likes, comments, etc.).

c) Cookies whose purpose could not be identified:

cookies

Domain

Description

CMP_SEAT

_CUPRA

.seat.es

Own cookie whose purpose could not be identified.

According to the information provided by the website manager in its "Cookie Policy," this cookie is classified as a "Technical Cookie."

However, the "CMP" extension is often used in cookies whose purpose is to manage user consent.

2.- On the cookie information banner on the first layer and the possibility of managing the use of

cookies:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without taking any action on the website, a cookie information banner appears at the bottom of the main page with the following message:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
4/12

Privacy is a value for SEAT.

About cookies: SEAT uses its own and third-party cookies to store data about your activity. With them, we can analyze web traffic and provide you with a complete and personalized experience. Some cookies are shared with third parties to show you more relevant online advertising. You can accept, reject, or manage them in the configurator. Want to know more? Check our <>.

<>

<>

<>

a).- If you choose to reject cookies (<>), it is verified how the website starts to use, in addition to the cookies detected at the beginning of the session, the new cookie "OptanonAlertBoxClosed," which has been verified to register that the user has closed the cookie pop-up notification that appears when the website is visited for the first time, so it can be considered a technical cookie.

b).- If you choose to configure the use of cookies through the <> option, the website displays a control panel where the following features can be seen:

- The cookies are divided into groups by purpose: preference or personalization cookies; analysis or measurement cookies; technical cookies; and behavioral advertising cookies.

- It is verified that each group of cookies is pre-checked in the "OFF" (disabled) option except for the group of "technical" cookies, which is marked with the message "always active."

If you now wish not to use any cookie that is not technical or necessary by clicking on the <> option without having moved any cursor from the "OFF" ☐ "ON" cookie groups, it is verified how the website starts to use the cookie "OptanonAlertBoxClosed," just as it occurred when the use of cookies was rejected in the initial banner.

c).- If you wish to give consent for the use of cookies that are not technical or necessary by clicking on the <> option in the initial banner or by clicking on the <> option in the control panel, it is verified how the website starts to use both its own and third-party cookies:

After granting consent for all cookies, we see that cookies from Google are installed with the following identifiers:

(...)

"name": "_gcl_au",

"value": "1.1.77721469.1716274579"

"name": "_ga",

"value": "GA1.1.724227696.1716274572"

"name": "_ga_J4YX7NJLH1"

"value": "GS1.1.1716274571.1.0.1716274578.60.0.0"

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

5/12

(...)

3rd.- About the Information provided in the "Cookie Policy" of the website

If you wish to access the "Cookie Policy" of the website through the existing link at the bottom of the page <>, the website displays a page <https://www.seat.es/legal/politica-cookies> where information is

provided about what cookies are; types of existing cookies; what cookies the website uses and information about their purpose; how to manage cookies and to which countries the data is transferred. 4th.- About the possibility of modifying the consent granted regarding cookies at any time during web browsing.

If the user has granted initial consent for the website to use non-technical or necessary cookies and wishes to withdraw or modify it, it is verified that there is a link in the "Cookie Policy" (section 3), <>, through which the website displays the cookie control panel:

If you now click on the <> option, it is verified how the website continues to use the same cookies detected when consent was granted. That is, both its own and third-party non-technical cookies that were installed when consent was granted remain present in the browser.

After browsing the page, it is verified that subsequent to the revocation of consent, in a request via the GET method, information about non-exempt cookies is sent

(...)

"name": "_gcl_au",

"value": "1.1.77721469.1716274579"

"name": "_ga",

"value": "GA1.1.724227696.1716274572"

"name": "_ga_J4YX7NJLH1"

"value": "GS1.1.1716274571.1.1.1716274897.60.0.0"

(...)

SECOND: According to the report collected from the AXESOR tool, the entity SEAT, S.A., A28049161 has a turnover of €10,000 million in the year 2022.

LEGAL GROUNDS

I

Competence.

According to the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions

6/12

in Regulation (EU) 2016/679, in this organic law, by the regulatory provisions issued in its development and, insofar as they do not contradict them, subsidiarily, by the general rules on administrative procedures."

The Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

a).- Installation of cookies on the terminal equipment prior to the user's consent:

Article 22.2 of the LSSI establishes that users must be provided with clear and complete information regarding the use of data storage and retrieval devices and, in particular, about the purposes of data processing. This information must be provided in accordance with the provisions of the GDPR.

Therefore, when the use of a cookie involves processing that allows for the identification of the user, the data controllers must ensure compliance with the requirements established by the data protection regulations.

However, it is necessary to point out that those cookies necessary for the intercommunication of terminals and the network and those that provide a service expressly requested by the user would be exempt from compliance with the obligations established in Article 22.2 of the LSSI.

In this regard, the GT29, in its Opinion 4/2012, interpreted that among the exempted cookies would be user input cookies (those used to fill out forms or for managing a shopping cart); authentication or user identification cookies (session cookies); user security cookies (those used to detect erroneous and

repeated attempts to connect to a website); multimedia player session cookies; session cookies for load balancing; user interface customization cookies; and some plug-in cookies for exchanging social content.

These cookies would be excluded from the scope of application of Article 22.2 of the LSSI, and therefore, it would not be necessary to inform or obtain consent for their use. Conversely, it will be necessary to inform and obtain the user's prior consent before using any other type of cookies, both first-party and third-party, session or persistent.

In this case, during the check conducted on the website in question, it was detected that when accessing it for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on it, the following cookies of a non-technical nature were being used:

Functionality or preference cookies:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

7/12

VISITOR_PRIVACY_METADATA.- whose domain belongs to .youtube.com

Targeting cookies:

VISITOR_INFO1_LIVE.-

whose domain belongs to .youtube.com

YSC.-

whose domain belongs to .youtube.com

Cookies whose purpose could not be detected:

CMP_SEAT_CUPRA.-

whose domain belongs to .seat.es

According to the information provided by the website manager in its "Cookie Policy," this cookie is categorized as a "Technical Cookie."

b).- On the possibility of withdrawing consent for the use of cookies once granted.

Users must be able to withdraw the previously granted consent at any time. To this end, the publisher must ensure that it provides information to users in its cookie policy on how they can withdraw consent.

The user must be able to revoke consent easily. The system offered to withdraw consent must be as easy as that used when consent was granted. It will be considered that such ease exists, for example, when the user has simple and permanent access to the cookie management or configuration system.

In this case, although there is a mechanism that allows the user to return to the control panel through the "Cookie Policy" page, it is NOT possible to modify the consent granted for the use of non-technical or necessary cookies, as even if the option to reject all cookies is chosen now, it is verified that the cookies installed when consent was granted remain present in the browser.

After navigating the page, it is verified that subsequent to the consent being revoked, in a request via the "GET" method, it is confirmed that information about non-exempt cookies is still being sent to the server.

III

Classification of the possible infringement committed

From the deficiencies detected regarding the cookie policy on the website <https://www.seat.es>, namely, the use of cookies that are not of a technical nature without the prior consent of the user and the impossibility of modifying the consent granted at any time during web navigation when the user wishes to do so, could imply on the part of the accused a violation of Article 22.2 of the LSSI, as it establishes the following:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

"Service providers may use data storage and retrieval devices on the terminal equipment of recipients, provided that they have given their consent after being provided with clear and complete information about their use, in particular, regarding the purposes of data processing, in accordance with the provisions of Organic Law 15/1999, of December 13, on the protection of personal data. When technically possible and effective, the recipient's consent to accept data processing may be provided through the appropriate parameters of the browser or other applications. The above shall not prevent possible technical storage or access solely for the purpose of transmitting a communication over an electronic communications network or, to the extent strictly necessary, for the provision of an information society service expressly requested by the recipient."

IV.

Proposal and Graduation of the Sanction

This infringement is classified as "minor" in Article 38.4 g) of the aforementioned Law, which considers as such: "Using data storage and retrieval devices when the information has not been provided or the consent of the recipient of the service has not been obtained in the terms required by Article 22.2," and may be sanctioned with a fine of up to €30,000, in accordance with Article 39 of the aforementioned LSSI.

The LSSI, in its Article 40, establishes the "graduation of the amount of sanctions," taking into account the following criteria:

- a) The existence of intent.
- b) The period of time during which the infringement has been committed.
- c) The recurrence of committing infringements of the same nature, when declared by a firm resolution.
- d) The nature and amount of the damages caused.
- e) The benefits obtained from the infringement.
- f) The volume of billing affected by the committed infringement.
- g) Adherence to a code of conduct or an applicable advertising self-regulation system regarding the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent authority or authorities.

Based on the evidence obtained, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed in accordance with the following aggravating criteria established by Article 40 of the LSSI:

- The existence of intent (section a). This expression must be interpreted as equivalent to the degree of culpability according to the Judgment of the National Court of 12/11/07 in Case No. 351/2006, corresponding to the reported entity the determination of a system for obtaining informed consent that complies with the mandate of the LSSI, since, when building a website, it is evident that one must be aware of the regulations on cookies and the fact that a cookie that is not of a technical or necessary nature is installed without consent is not possible unless the responsible party intentionally decides so. A cookie is installed only if the responsible party allows it to be installed.

According to these criteria, and without prejudice to what results from the instruction of this file, it is deemed appropriate to impose, for the infringement of Article 22.2 of the LSSI, regarding the cookie policy implemented on the website owned by the entity, an initial sanction of €20,000 (twenty thousand euros).

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the entity SEAT, S.A., with CIF: A28049161, owner of the website www.seat.es for the violation of Article 22.2 of the LSSI, classified as "minor" in Article 38.4 g) of the aforementioned regulation.

SECOND: TO APPOINT Mr. A.A.A. as Instructor, and Mr. B.B.B. as Secretary, indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed and its documentation, the documents obtained and generated by the General Subdirectorate of Data Inspection during the investigation phase, all of which are part of this administrative file.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, without prejudice to what results from the instruction of this file, €20,000 (twenty thousand euros). FIFTH: TO NOTIFY this agreement to initiate the sanctioning file to the entity SEAT, S.A., with CIF: A28049161, granting a hearing period of ten working days for it to submit allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number indicated in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; it

10/12

which will entail a 20% reduction of the sanction that should be imposed in this procedure, equivalent in this case to 4,000 euros. With the application of this reduction, the sanction would be set at 16,000 euros, concluding the procedure with the imposition of this sanction.

Likewise, at any time prior to the resolution of this procedure, the voluntary payment of the proposed sanction may be made, which will imply a 20% reduction of its amount, equivalent in this case to 4,000 euros. With the application of this reduction, the sanction would be set at 16,000 euros, and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be set at 12,000 euros (twelve thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

If the option is taken to proceed with the voluntary payment of any of the amounts indicated above (16,000 euros or 12,000 euros), it must be made effective by depositing it into account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at Banco CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Likewise, the proof of deposit must be sent to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of nine months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 43.2 of the LSSI.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address before this Agency to receive the notice of availability of notifications and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal is available against this act.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

11/12

Mar España Martí
Director of the Spanish Agency for Data Protection.

>>

SECOND: On October 8, 2024, the respondent has proceeded to pay the sanction in the amount of 12,000 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement and its legal qualification.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations will apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility,

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

12/12

The procedure may be resolved with the imposition of the applicable sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the imposition of the latter has been justified as inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which will be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202309901, in accordance with the provisions

of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to SEAT, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

936-151024

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es